

Present:

Mr. Justice S.M. Emdadul Hoque
and
Mr. Justice Bhishmadev Chakrabortty

Death Reference No.88 of 2015.

The State

..... The petitioner

-Versus-

Md. Belal Hossain alias Bilu.

..... The condemned-Prisoner.

with

Criminal Appeal No.8201 of 2015.

Md. Belal Hossain alias Bilu.

..... The appellant.

-Versus-

The State

..... The respondent.

with

Criminal Appeal No.10701 of 2015.

Md. Nadim and another.

..... The appellants.

-Versus-

The State

..... The respondent.

with

Jail Appeal No. 178 of 2015

Md. Belal Hossain alias Bilu.

..... The appellant.

-Versus-

The State

..... The respondent.

with

Jail Appeal No. 259 of 2016

Md. Rayhan Mia.

..... The appellant.

-Versus-

The State

..... The respondent.

Mr. Harunur Rashid, D.A.G with
 Mr. Kazi Bashir Ahmed, A.A.G with
 Mr. Zahid Ahammad (Hero) A.A.G with
 Mr. Md. Shafiquzzaman (Rana), A.A.G
 for the State.

(In the reference and respondents of all the appeals)

Mr. Taj Mohammad Sheikh with
 Mr. Al Mahmud, Advocates
 for the appellants.

(In all criminal appeals and Jail Appeals)

**Heard on 13.09.2021, 19.09.2021, 16.09.2021 and
 Judgment on: 22.09.2021.**

S.M. Emdadul Hoque, J:

The learned Additional Sessions Judge, 1st Court, Bogura has made this death reference under Section 374 of the Code of Criminal Procedure for confirmation of the sentence of death awarded upon the condemned-prisoner Md. Belal Hossain alias Bilu son of late Gofur Ali under Sections 302/34 of the Penal Code in Sessions Case No. 67 of 2008 arising out of Bogura Sadar Police Station Case No.122 dated 31.07.2006 corresponding to G.R. No. 629 of 2006 (Sadar) sentencing him to death by its judgment and order of conviction dated 19.10.2015 and also to pay a fine of Tk.20,000/- (twenty thousand), in addition he was also convicted under section 201 of the Penal Code and sentenced to suffer rigorous imprisonment for 2 (two) years and also to pay a fine of Tk.

5,000/- in default to suffer simple imprisonment for 6 (six) months more.

The learned Judge by the same judgment convicted the accused-appellants namely Md. Nadim, Md. Azim, Md. Rayhan and Ms. Nasima Begum (absconding) under section 302/34 of the Penal Code and sentencing them to imprisonment for life and also to pay a fine of Tk. 10,000/- each in default to suffer simple imprisonment for 6 (six) months more and in addition to convicted them under section 201 of the Penal Code and sentencing them to rigorous imprisonment for 2 (two) years and also to pay a fine of Tk. 5,000/- each in default to suffer simple imprisonment for 6 (six) months more.

The prosecution case as made out by the informant Md. Shahinur Islam, the P.W-1, in short, is that the occurrence took place on 27.07.2006 at about 9:00 p.m. The deceased Shahidul Islam the elder brother of informant left out from his business shop of Kalitola Bazar after closing his shop and he had Tk. 75,000/- with him and on enroute he told his younger brother Md. Rafique Islam that he is going somewhere with Md. Belal Hossain alias Bilu. Deceased Md. Shahidul Islam lastly seen in

the Satmatha area along with the condemned-prisoner Md. Belal Hossain, the accused Md. Nadim and Md. Azim and thereafter he also saw them in the Dottobari area at about 9:00 p.m. then said Rafique Islam returned back to his house but the deceased Shahidul Islam did not come back. Thereafter the informant searched for him in several places but was not found. Subsequently the informant filed a G.D. entry being No. 1635 dated 29.07.2006 about his missing. The deceased Shahidul Islam since did not return back till 31.07.2006 he again lodged Ejaher with the Bogura Sadar police station on 31.07.2006 suspecting the condemned-prisoner Md. Belal Hossain Bilu, accused Md. Nadim and Md. Azim that they may be abducted and killed the deceased Shahidul. On the next day i.e. on 01.08.2006 the dead body was found in a pond next to the house of Md. Belal Hossain, wherein accused Nasima Begum the wife of Md. Belal Hossain tried to hide the dead body by water hyacinth and the local people saw the same and made shouting then accused Nasima Begum succeed to flee away from the spot. Thereafter on getting information the police came to the place of occurrence and recovered the

floating dead body and found several injuries on the person of the dead body and was partially decomposed and intestine came out from the perforated injuries on the abdominal part of the dead body and his throat was cut and the head just attached with skin only. Thereafter the police held the inquest of the dead body and sent the corpse to the morgue for autopsy and thereafter seized a 12' iron made dagger and a synthetic bag found block in the bottom of the bag from the house of accused Md. Belal Hossain and subsequently one of the accused Md. Rayhan was apprehended and who made confessional statement before the magistrate and disclosed the commission of offence and the name of the accused-persons. Hence the case.

The case was initially investigated by Md. Saiful Islam, P.S.I, Bogura Sadar Police Station and subsequently by S.I. Abdul Wadud. They visited the place of occurrence, prepared the sketch map along with separate index, conducted the inquest of the dead body and sent the corpse to the morgue for post-mortem, seized alamats by two separate seizure list, examined the witnesses and recorded their statements under

Section 161 of the Code of Criminal Procedure. Arrested the accused-persons and among them accused Md. Rayhan made confessional statement under section 164 of the code of criminal procedure and after completing all the formalities of the investigation found *prima-facie* case against the accused-persons and submitted the charge-sheet being No.790 dated 15.12.2006 under Sections 364/302/ 201/34 of the Penal Code.

The case record ultimately came to the file of the learned Additional Sessions Judge, Court No.1, Bogura, who framed charge against the accused-persons under section 364/302/ 201/34 of the Panel Code, on 09.07.2008 which was read over to the accused persons who were on the dock to which they pleaded not guilty and claimed to be tried. But the charge could not be read over to the accused No. 5 Mst. Nasima Begum (since absconding).

At the trial the prosecution examined as many as 15 (fifteen) witnesses among 21 (twenty one) charge sheeted witnesses, but the defence examined none.

The trial court thereafter examined the accused who were on the dock under section 342 of the code of criminal

procedure, which was read over to them to which they reiterated their innocence again.

The defence case as could be gathered from the trend of cross examination of the prosecution witnesses and the examination under section 342 is total denial of the prosecution case. Their further case is that the deceased Shahidul Islam was not kidnapped or killed by them but he may be killed by his business enemy.

After close of the trial the learned Additional Sessions Judge, Bogura found the accused persons guilty of the charge leveled against them and convicted and sentenced them as aforesaid.

Thereafter the learned Additional Sessions Judge, Bogura Made this death reference under section 374 of the Code of Criminal Procedure for confirmation of the sentence of death and sent all the records to this court.

The condemned-prisoner Md. Belal Hossain alias Bilu filed Jail Appeal being No. 178 of 2015 and subsequently preferred Criminal Appeal No. 8201/2015.

The convicts Md. Nadim and Md. Azim also preferred Criminal Appeal No. 10701 of 2015.

The convict Md. Rayhan was arrested subsequently and he filed Jail Appeal being No. 259 of 2016 through the Jail authority. But the convict Nasima Begum is till absconding.

The Criminal Appeal No. 8201 of 2015, Criminal Appeal No. 10701 of 2015, Jail Appeal No. 178 of 2015 and Jail Appeal No. 259 of 2016 arising out of the same judgment and order of conviction and sentence being heard analogously along with the Death Reference and being disposed of by this single judgment.

Mr. Md. Shafiquzzaman (Rana), the learned Assistant Attorney General takes us through the Ejahar, the charge, the inquest report, the post mortem report, the seizure list, deposition of the witnesses, the impugned judgment and the papers and documents as available on the record.

Mr. Harunur Rashid, the learned Deputy Attorney General in support of the reference submits that in the instant case admittedly no eye-witnesses and whole case based only considering the circumstantial evidence. He submits that the

F.I.R. was lodged on 31.07.2006 mentioning that the deceased was lastly seen accompanied with condemned-prisoner Md. Belal Hossain alias Bilu, accused Md. Nadim and Md. Azim also with them in the area of Satmatha and Dottobari of Bogura Town and thereafter, deceased Shahidul Islam was not returned back. He submits that in the G.D. entry and as well as in the F.I.R. the informant stated the aforesaid fact. He submits that the presence of dead body was in the sack came into light on 01.08.2006 while the convict Nasima Begum the wife of condemned prisoner Md. Belal trying to hide the said dead body nearby a pond of his house by water hyacinth and the local people saw the same and thereafter the police recovered the dead body from the said pond and found several injuries on the person of victim Shahidul.

He further submits that the post-mortem report supported the injuries which were initially mentioned in the inquest report.

He further submits that the police also seized incriminating materials such as a dagger and bloodstained synthetic bag from the house of the condemned-prisoner Md.

Belal, from the above fact and evidence on record it can safely be said that the prosecution succeed to prove the case beyond all reasonable doubt and the trial court rightly passed the impugned judgment.

His next arguments is that the victim was lastly seen with the company of condemned-prisoner Md. Belal Hossain, accused Md. Nadim and Md. Azim at about 9:00 p.m. at Satmatha and Dottobari area of Bogura Town on 27.07.2006. The P.W.2 Md. Rafiqul Islam younger brother of deceased Shahidul also disclosed that after close of the business shop the deceased Md. Shahidul Islam told him that he will go somewhere with accused Md. Belal and requested him to disclose the same to his brother Md. Shahinur Islam the present informant the P.W.1 and since he did not return back thus initially they filed G.D. entry being No. 1635 dated 29.07.2006 and thereafter lodge F.I.R. on 31.07.2006 suspecting those three accused-persons the said facts fully consistent with and the defence did not challenge the aforesaid facts.

He further submits that the prosecution witnesses specially the P.W.3, P.W.4 and P.W.7 though were hearsay witness but corroborated the aforesaid facts and deposed that they came to know that the deceased Shahidul was lastly seen accompanied with the condemned prisoner Md. Belal on 27.07.2006 at 9:00 p.m. in the Bogura town, even the defence though cross-examined them but could not succeed to find anything contrary to their evidence so, the facts that at least the deceased was lastly seen with the company of accused Md. Belal in the Dottobari area on 27.07.2006 corroborated by all the witnesses.

He further argued that the recovery of the dead body is the vital facts of the case and most of the witnesses corroborated the same.

He submits that though the G.D. entry was not in the record but in the subsequent F.I.R. the informant specifically mentioned the name of the accused and stated that the victim had Tk. 75,000/- with him and he was lastly seen in the Bogura Town with company of the accused persons.

He submits that the injuries mentioned in the inquest report also supported by the post-mortem report and thereafter the police also seized the incriminating material from the house of the accused Md. Belal and the P.W.10 supported the aforesaid facts in her deposition and she stated that the wife of accused Belal tried to hide the dead body in the said pond by water hyacinth but the defence though cross examined her but could not find any contrary to her evidence.

He submits that the facts of recovery of the dead body also supported by P.W.1, P.W.2, P.W.3, P.W.4 and P.W.13 and among them P.W.13 also disclosed that he heard that the accused Nasima Begum the wife of accused Md. Belal tried to hide the dead body and the alamats seized from the house of accused Md. Belal and no contrary view could be established by the defence that the said alamats were not seized from the house of the condemned prisoner Md. Belal Hossain.

He further submits that the case of last seen of the victim accompanied with the accused Md. Belal and wherein accused Md. Nadim and Md. Azim were also present and the second facts that the dead body was recovered from the pond

next to the house of accused Md. Belal and 3rd facts that the accused Nasima Begum while trying to hide the dead body in the pond next to the house of accused then the presence of the dead body came into light and lastly the recovery of the incriminating materials from the house of the accused Md. Belal proved that they had committed the murder and the prosecution succeed to prove the case beyond all reasonable doubt.

He further submits that the doctor the P.W.14 also proved the post-mortem report and injuries which were mentioned in the inquest report all are same and all the circumstantial evidence supported the prosecution case.

The learned Deputy Attorney General further submits that though the I.O. did not prepare the sketch map where the deceased Shahidul was lastly seen accompanied with accused Md. Belal i.e. Satmatha and Dottobari area of Bogura Town but the prosecution succeeded to prove the same by adducing sufficient evidence and in such a case non preparation of the sketch map of the place where the deceased was lastly seen

accompanied with the accused the defence should not be prejudiced.

The learned Deputy Attorney General further submits that though the trial court relying upon the confessional statements of the accused Md. Rayhan but submits that he is not willing to make any submission about the same since the circumstantial evidence are so strong that there is no other hypothesis but than that of the guilt of the accused and in such a case the confession of the co-accused is immaterial since circumstantial evidence is sufficient and the same can be based for conviction.

However, the learned Deputy Attorney General frankly submits that if the confessional statement of the accused Md. Rayhan be considered then his conviction under section 201 should not be sustained but he submits that the conviction and sentence under section 302/34 against him should be sustained.

He prayed for acceptance of the death reference and dismissal of the appeals.

On the contrary Mr. Taj Mohammad Sheikh the learned Advocate of the appellants submits that the prosecution measurably failed to prove the charge leveled against all the convicts. He further submits that the judgment of the trial court is purely on surmise and conjecture and without any evidence. The learned Advocate submits that admittedly no eye witness in the instant case and prosecution should prove the chain of circumstances to guilt of the accused persons.

He submits that initially the informant filed G.D. entry No. 1635 dated 29.07.2006 and in his cross he categorically stated that he did not mention any name of the accused and the said G.D. entry should be treated as First Information Report since which was filed complying with the procedure of section 154 of the code of criminal procedure and the F.I.R. may be treated as 161 statement. In support of his argument the learned Advocate cited the decision of the case of Haider Ali and others -versus- The State, reported in 21 DLR (AD)-291, the case of Muslim Uddin and others -versus- The State, reported in 7 BLD(AD)-1 and the case of Nurjahan Begum -versus- The State, reported in 8 BLD (HCD)-389.

He further submits that the prosecution case is that the accused was lastly seen in the Satmatha and Dottobari area of Bogura Town which only disclosed by the P.W.2 and the police did not prepare the sketch map of the said area where the deceased was lastly seen accompanied with the convict persons and same is the first breaking of the chain of circumstances.

He further submits that admittedly no eye-witness in instant case and the material facts only brought out from the confessional statement of the co-accused Md. Rayhan but the said confessional statements is purely exculpatory in nature and in such a case the conviction cannot be based relying upon the said confessional statement of the co-accused Md. Rayhan. In support he cited the decisions of the case of Abu Jamal and others –vs. The State, 51 DLR (HCD)-57 and the decisions reported in 10 DLR(HCD)-580 , 27 DLR (AD)-19 and 13 BLT (HCD)-524.

He further submits that the confessional statements of the co-accused is not a substantive evidence and should not be based on conviction of another co-accused without any

substantive evidence. In support of his argument he cited the decision of the case of Ustar Ali –vs. The State, reported in 3 BLC (AD)-53 and the decision reported in 13 BLC(AD)-17.

The learned Advocate further submits that the confessional statement of the co-accused recorded by the magistrate after 74 hours of his arrest and the accused Md. Rayhan was kept with the custody of the police without any explanation and without producing him to the magistrate and getting permission from the concerned magistrate and in such a facts the same should be inadmissible, relying upon the decisions reported in 1 BLC (HCD)-524, 8 BLT (AD)-87 and 51 DLR (HCD)-57.

The learned Advocate further submits that the submission of the learned Deputy Attorney General only based upon the circumstantial evidence but in the instant case the circumstantial evidence is not sufficient to convict the accused since the prosecution measurably failed to prove the last seen of the deceased Shahidul Islam accompanied with the accused in Satmatha and Dottobari area of Bogura Town and no specific place has been mentioned in the sketch map where

they were lastly seen and as such the chain of the circumstances had been broken in such a case the ultimate result that all the circumstances are not proved. In support he cited the decisions reported in 43 DLR(AD)-182, 3 ALR(HCD)-45, 2 ALR(HCD)-457 and 43 DLR (AD)-182.

The learned Advocate submits that the incriminating evidence should be brought to the notice of the accused on their examination under section 342 of the code of criminal procedure and the vital incriminating materials that the bloodstain synthetic bag and an iron made dagger were recovered from the house of the accused Md. Belal but which was not brought to the notice of the accused at the time of examination, so, the appellants were seriously prejudiced. In support of his submission the learned Advocate cited the decisions reported in 2 ALR (HCD)-257 and 3 ALR (HCD)-45.

The learned Advocate further submits that the prosecution measurably failed to prove the motive of the case that deceased had Tk. 75,000/- in his hand when he left out from his business shop, the P.W.2 though disclosed the same and P.W.1 also support the same but in support of the same

they did not produce any material evidence that the victim had taken Tk. 75,000/- from the shop even the police did not seized the Cash Book and could not recover the said amounts or not a single penny from the accused Md. Belal or from his house in such circumstances of the facts the motive as stated by the prosecution has not been proved. He cited the decisions reported in 39 DLR (HCD)-194 and 5 BLC (HCD)-451.

He further submits that the prosecution did not produce a single witness from the area of their business shop from where deceased Shahidul went out even none of the witness was examined from the area of Dattobari or Satmatha of Bogura Town to corroborate that the victim was accompanied with the condemned prisoner as such the case of last seen has not been proved beyond reasonable doubt.

He further submits that in the instant case the appellants get benefit of doubt since the incriminating material was not brought to the notice of the accused at the time of examination under section 342 of the code of criminal procedure and non-production of the general dairy which was filed earlier before the Ejaher and if the said G.D. would

produced then the case may be otherwise and in such a case the appellants should get benefit of doubt. In support he cited the decisions reported in 1987 BLD (AD)-265, 21 DLR (HCD)-291 and 3 ALR (HCD)-44.

His alternative argument is that in the instant case the mitigating circumstances should be considered since the prosecution measurably failed to prove the motive of the case, no eye-witnesses in the instant case and conviction based only relying upon circumstantial evidence but the chain of circumstances has been broken and further the condemned prisoner in the death cell for more than 6 years and our Apex court considering the decisions reported in 17 BLC(AD)-204 and 18 BLD(HCD)-605 commuted the sentence.

He further submits that the convict-appellants Md. Nadim and Md. Azim convicted under sections 302/34 of the penal code but in the instant case the prosecution failed to prove that in furtherance of common intention the murder was happened in such a case without any direct evidence or circumstantial evidence the conviction cannot be sustained.

He further submits that the 164 statements of the accused Md. Rayhan purely an exculpatory confession and in such a case conviction should not be awarded on the basis of his confession. He cited the decisions reported in 4 BLC(AD)-223 and 64 DLR (HCD)-523.

The learned Advocated prayed for rejection of the death reference and allowing the appeals.

Let us discussed the evidence of the prosecution witnesses.

P.W.1 Md. Shahinur Islam the informant of the case deposed that the date of occurrence on 27.07.2006 at 9:00 p.m. He deposed that at night after closing the business shop he and the victim Md. Shahidul Islam went away from the shop and Shahidul had Tk. 75,000/- in his hand. He deposed that his younger brother Md. Rafiqul Islam the P.W.2 informed him that at 9:00 p.m. he saw the deceased Shahidul accompanied with accused Md. Belal Hossain alias Bilu, Md. Nadim and Md. Azim at Dottobari area and deceased told him that he will go somewhere with Md. Belal but he did not return back and thereafter he filed a G.D. entry being No. 1635 dated

29.07.2006 and subsequently lodged ejaher on 31.07.2006 and the dead body was found on 01.08.2006 in a pond next to the house of accused Md. Belal while local people saw that convict Nasima Begum the wife of accused Md. Belal trying to hide the dead body by water hyacinth. The dead body was packed in a sack and floating in the said pond and the local people while did shouting the convict Nasima succeed to flee away. He deposed that getting such information the police came to the place of occurrence and recovered the dead body from the pond and held the inquest. The police found a perforated stabbed injury on the right chest area and also a perforated injury on the abdominal part and intestine came out and throat was cut and just hanged by the skin. He proved the F.I.R. Exhibit No. 1 and his signature as Exhibit No. 1/2. He also proved the inquest report and his signature as Exhibit No. 2 and 2/1. The police arrested accused Md. Rayhan who made confessional statement and disclosed the details about the murder. Accused Nasima Begum now absconding since the incident and other accused persons present on the dock.

In cross examination of the defence this witness stated that he did not see nothing about the killing and he made G.D. entry before the F.I.R. and perhaps the name of accused Nasima Begum and Md. Rayhan were not mentioned in the F.I.R.

He denied the defence suggestion that the accused-persons were not involved with the killing and the deceased Shahidul was killed by his former business partner and falsely implicated the accused-persons in the instant case.

In cross examination of accused Md. Belal this witness stated that witness Md. Shahinur Islam and Md. Rafiqul Islam used to live in same house at Shib Bati area and he used to live in a separate house along with other brothers at Fulbari South Para. Deceased Shahidul did iron and vangaries business. In cross examination he stated that victim Shahidul was with him lastly on 27.07.2006 till evening and thereafter who told him that he will go to city and return back soon and he had no knowledge where about the victim till recovery of the dead body and they searching him in several places after disappearance. In cross examination he stated that he met

with his brother Rafiqul Islam told him that he saw deceased Shahidul lastly on 27.07.2006 and thereafter made a G.D. entry on 29.07.2006 and did not mention the name of any of the accused in the said G.D.

He further stated that on 01.08.2006 at about 1:00 p.m. to 2:00 p.m. he came to know from local people that the dead body was found in a pond next to the house of accused Md. Belal and on getting information police came there and he was present when police recovered the dead body. Accused Md. Belal was one of our clansmen and they had no kinship with Md. Belal.

In cross examination he stated that in G.D. he did not suspect the accused-persons and denied the suggestion that he had dispute about the paternal properties with accused Md. Belal and also denied the suggestion that due to the family rivalry they falsely implicated them in the instant case. He further denied the suggestions that at the time of commission of offence the accused Md. Nadim and Md. Azim were minor aged about 14/16 and were innocent and also denied the

suggestion that deceased Shahidul was killed by other miscreant.

P.W.2 Md. Rafiqul Islam, the younger brother of deceased Md. Shahidul Islam deposed that occurrence took place on 27.07.2006 at about 9:30 p.m. and on the said day while he was going to the house after closing the business shop on enroute deceased Shahidul told him that he will go somewhere with accused Md. Belal and thereafter went to Satmatha from Kalitola. He further deposed that he also went to Satmatha and Dottobari area and saw his brother deceased Shahidul Islam was wandering accompanied with accused Md. Belal Hossain Bilu, Md. Nadim and Md. Azim and who told him to say his brother Md. Shahinur Islam that he left out with accused Belal and he had Tk. 75,000/- in his hand. He deposed that he returned back to his house but the deceased Shahidul did not come back and on the next morning searching for him in several places with their relatives and on 29.07.2006 they filed G.D. entry and on the next day the accused Md. Belal and his family members fled away keeping the house locked and then could realize that the accused Md. Belal abducted the

victim and they lodged the Ejaher on 31.07.2006. He further deposed that on 01.08.2006 the presence of dead body came to light while the convict Nasima Begum the wife of Md. Belal was trying to hide the dead body by water hyacinth which was packed in a sack and was kept in a pond next to the rented house of accused Md. Belal and accused Nasima succeed to flee away from the scene.

He deposed that the police came to the place of occurrence and recovered the dead body along with two bricks and the local commissioner Aminul Sarkar and others were also present there and found two stabbed injury on the chest and neck injury and throat cut injury which was attached by skin only. The police arrested the accused Md. Rayhan who made confessional statement before the magistrate and disclosed the name of the accused-persons and the manner of killing.

He further deposed that the accused-persons tried to dig a hole inside the house for hiding the dead body and he also found blood in the wall of the house of accused Md. Belal and general people also saw the said facts. He identified the

accused-persons on the dock except accused Nasima Begum and Md. Nadim since they were absconding.

In cross examination of accused Md. Belal, Md. Nadim and Md. Azim this witness stated that the distance of the house of his brother was about $\frac{1}{2}$ kilometer from his house and he was married. He stated that name of the wife of deceased Shahidul was Halima but said Halima was not witness since she was sick and one of his brother Md. Shahinur Islam lodged the Ejaher and he talked with him before lodging the Ejaher and he did not see the killing and he saw the blood in the wall and floor of the house of accused Md. Belal and also a bloodstained sack next to the house of accused Md. Belal. He was examined after 2 or $2\frac{2}{1}$ months of the occurrence. He could not say the name of the surrounding people of the pond and also could not say the name of the neighbours of Md. Shahinur Islam.

In cross-examination of the defence he stated that they had no money dispute among them and the accused-persons were the members from their same clan and they had no land property and as such no land dispute with the accused-persons

and in the Ejaher they suspected the accused persons. In cross-examination of the defence this witness stated that he saw accused Md. Belal Hossain, Md. Nadim and Md. Azim accompanied with his brother deceased Shahidul on the date of occurrence and denied that no involvement of these accused-persons with the murder and denied the suggestions that the accused persons did not kill the victim and due to previous enmity they falsely implicated the accused person in this case and deposed falsely.

P.W.3 Md. Jaminur Hasan Sawon, deposed that the dead body was recovered from the pond and accused were Md. Belal Hossain, Md. Nadim, Md. Azim, Nasim and Md. Rayhan. He deposed that while he returned back from Town he came to know that the deceased Md. Shahidul Islam was missing and thereafter searching him in several places. He deposed that subsequently he came to know that on 27.07.2006 the witness Md. Rafiqul Islam saw the accused Md. Belal was wandering with deceased Shahidul at Dattobari area. He deposed that on 01.08.2006 some people came to his area and disclosed that accused Belal and accused Nasima Begum was trying to hide a

dead body by water hyacinth on a pond then he went to the said place and the police recovered the dead body and several injuries present on the persons of the deceased. The police prepared the inquest report and he put his signature. He proved his signature present in the inquest report as Exhibit No. 2/2. He further deposed that on 01.08.2006 the police prepared two separate seizure list and he put his signatures in those seizure list. He proved the two seizure list as Exhibit No. 3, 4 and his signatures present in the seizure list as Exhibit No. 3/1 and 4/1 respectively.

He deposed that the seized material about 12' length bloodstained dagger and a bamboo stick and two bricks and 8 qubits length rope and a read colour blood stained cement's sack now present in the court.

He came to know that due to business dispute the accused persons killed the victim and accused Md. Rayhan made confessional statement. He identified the accused persons on the dock.

In cross-examination of the defence this witness stated that he did not see the murder but he was the witness of

recovery of the dead body which was packed in a sack and was recovered from a pond and dead body was brought from the pond with the help of a dome but could not say who was the owner of the said pond.

He stated that the shop owner Delower informed him that the dead body was found in the Fulbari area then he along with Bulet, Manik and Commissioner Farid went to the said area and saw the dead body which was decomposed. They could recognize the dead body of deceased Shahidul Islam and the seizure list was prepared at the place of occurrence and he put his signature in the seizure list and witness Manik and Farid also put their signatures in the seizure list.

He denied the defence suggestion that he deposed falsely. He admitted that the police did not bring type machine at the place of occurrence and denied that the seizure list was prepared at the police station and they went there and put their signatures.

P.W.4 Md. Farhad Hossain, deposed that the date of occurrence on 27.07.2006 at about 9:00 p.m. and the deceased Md. Shahidul Islam had a lathe machine shop and he

was disappeared from Dottobari area and when he left the shop he told his younger brother that he was going to Dottobari area with accused Md. Belal and thereafter he was missing and did not return back and the accused Md. Belal was not found in the said area and which report published in the news paper. He deposed that his elder brother lodged written Ejaher. On 01.08.2006 the dead body was found on a pond next to the house of the accused Md. Belal and while the wife of Md. Belal namely Nasima tried to hide the dead body by water hyacinth and the local people saw the same. Then the police came to the place of occurrence and recovered the dead body from the said pond and prepared the inquest report and his name was mentioned in serial No. 3. He proved his signature present in the inquest report as Exhibit No. 2/2. He deposed that accused Md. Belal was a track driver and accused Md. Rayhan was his helper and accused Md. Rayhan made confessional statement and thereafter they came to know the details of the murder.

In cross-examination of the defence this witness stated that the said pond was about $\frac{1}{2}$ kilometer from his house and

he went there before arrival of the police and the dead body was packed in a sack. He saw the recovery of the dead body then the Word Counselor Farid was also present.

He denied the defence suggestion that he had previous enmity with accused Md. Belal. He admitted that he was not a witness of murder and there were many houses surrounding the pond and he was not the resident of the said area. He denied the defence suggestion that the dead body was not recovered from the pond and the surrounding people were not made witness in the inquest report. He denied that he was not accompanied with the informant when he lodged the Ejaher and deceased Md. Shahidul Islam was not killed by the accused persons and he deposed falsely.

P.W. 5 Md. Rezaul Karim Manik, deposed that on 01.08.2006 the dead body was recovered from a pond of Sarkerpara of Fulbari next to the house of accused Md. Belal which was about 50/60 qubits from the house of accused Md. Belal and he was present there. The police seized one bag, one 2 qubits bamboo stick pointed to one side, two old bricks, 8 qubits laylone rope, and 12' iron made dagger along with

bloodstained cement bag from the tin-set house of accused Belal and the police prepared two seizure list and he put his signatures in the seizure list. He proved the two seizure list and his two signatures present in the seizure list as Exhibit No. 3, 3/2, 4 and 4/1 respectively. He deposed that the neck was cut off and the throat just attached only by skin and he also found two injuries in either side of abdominal part and intestine came out. He came to know that deceased Md. Shahidul Islam was missing from 27.07.2006 and the local people saw that the wife of accused Md. Belal namely Nasima was trying to hide the dead body and the accused Md. Rayhan made confessional statements before the magistrate. He identified the accused-persons on the dock.

In cross-examination of the defence this witness stated that he did not see the occurrence and the seizure list was prepared on 01.08.2006 in the Sarker Para of Fulbari area which was about 1 and $\frac{1}{2}$ kilometer from his house. He along with the local commissioner went there after arrival of the police. Mr. Aminul Farid was the commissioner of the aforesaid word No. 3, and there were 10/12 houses surrounding the

house of accused Md. Belal. He denied the defence suggestion that nothing was recovered from the area where the seizure was made and he deposed falsely and the local people were not present when the seizure list was prepared.

P.W.6 Md. Shahabuddin was tendered by the prosecution.

In cross examination of the defence this witness stated that at the time of incident he was in abroad.

P.W.7, Babor Ali deposed that the incident took place on 26.07.2006 and he came to know that the deceased Shahidul was lastly seen along with accused Md. Belal in Dottobari area at 9:00 p.m. from the family members of victim Shahidul. He deposed that the dead body was recovered on 01.08.2006 from a pond next to the house of accused Md. Belal which was packed in a sack and receiving the information he went there and found the dead body and several cut injuries present on the person of the deceased. He also found two injuries in either side of the abdominal part and intestine came out. The police prepared the inquest report and he put his signature in

the inquest report. He proved his signature present in the inquest report as Exhibit No. 2/3.

In cross examination of the defence this witness stated that he did not see the murder and could not state that who killed the deceased Shahidul Islam. He stated that there were business dispute between the deceased Shahidul and accused Md. Belal and for that reason accused-persons killed the deceased Shahidul. He also stated that when he reached at the place of occurrence he saw police present there and the place of occurrence was about 1-mile from his house.

P.W.8 Tutul Driver alias Md. Tutul deposed that he knew nothing.

The prosecution declared him hostile and cross examined him.

In cross examination of the prosecution he admitted that the accused Md. Belal was a driver and he is a permanent resident of the Fulbari area and could not say whether Md. Belal was a tenant of the said area and he also could not say whether the dead body of deceased Shahidul was recovered from a pond nearby his house. He denied the prosecution

suggestion that in presence of him the accused Nasima was trying to hide the dead body by water hyacinth and also denied the suggestion that when he made shouting she fled away and since the accused Md. Belal was a driver he deposed in favour of him.

The defence declined to cross examine this witness.

P.W.9 Md. Nasir Uddin, deposed that he did not know the facts but the accused Md. Belal and Md. Azim had a rented house of the said area and also came to know that the dead body was found from a pond nearby the house of accused Md. Belal and he did not know nothing.

The prosecution declared him hostile and cross examined him.

He denied the prosecution suggestion that at bout 11:00 a.m. on 01.08.2006 while accused Md. Belal and his wife Nasima trying to hide a dead body by the water hyacinth nearby a pond next to the house of accused Md. Belal then the local people saw the same and accused Nasima succeed to flee away. He denied the suggestion that the police found a dead body kept in a sack from the said pond and his shop is adjacent

to the pond and also denied that he saw the dead body with several cut injuries and though he had knowledge about the aforesaid facts but deposed falsely.

In cross examination of the defence this witness stated that he could not say who lodged the Ejaher and the police did not ask him about the said matter.

P.W. 10 Jhorna Begum, deposed that on 01.08.2006 at about 11:00 to 11:30 a.m. and she was at her house saw that wife of Md. Belal namely Nasima Begum was trying to hide something in the pond by water hyacinth next to the house of accused Md. Belal and she went there but accused Nasima succeed to flee away. Thereafter on getting information the people came to the place of occurrence and recovered the dead body of deceased Shahidul Islam but she did not see the dead body. She further deposed that she came to know that Shahidul had Tk. 75,000/- in his hand for that reason he was killed. She deposed that thereafter she did not see the accused persons in the said area and accused Nasima was not present on the dock.

In cross-examination of the defence this witness stated that her house was situated at Sarker Para of Fulbari and she knew both informant Md. Shahinur Islam and his brother the deceased Shahidul Islam, and she was examined by the police. She denied the suggestion that she did not know nothing and deposed falsely and admitted that she did not see the killing.

P.W.11 Md. Aminul Farid, the counselor of the aforesaid Word deposed that on 01.08.2006 he got information that the dead body of Shahidul Islam was recovered from a pond nearby the rented house of accused Md. Belal and he went there and the dead body was tied with rope and was kept in a sack. The police came to the said area at about 2:45 p.m. and brought the said sack and he saw several cut injuries on the person of the deceased. The police prepared the inquest report and he put his signature in the said inquest report. He proved his signature present in the inquest report as Exhibit No. 2/4. Thereafter the police went to the house of accused Md. Belal and found bloodstained white colour synthetic bag and also a bloodstained iron made dagger about 12' length and

the police prepared the seizure list and he put his signature in the said seizure list.

The police also found two bricks and some laylone rope and prepared the seizure list and took his signature in the said seizure list. He proved the said two seizure lists as Exhibit No. 3 and 4, and his signatures as Exhibit. 3/3 and 4/3 respectively. He further deposed that relatives of deceased Shahidul disclosed that he was missing and he was informed that deceased Shahidul was lastly seen at the Dottobari area along with accused Md. Belal and he was also informed that they received phone call of deceased Shahidul. He told the family members of Shahidul to lodge Ejaher. He identified accused Md. Belal and others who were present in the dock.

In cross examination of the defence this witness stated that he was not examined by the police and his house was about 1 kilometer from the place of occurrence and he was called by freedom fighter Ibrahim Hossain about 2:15 p.m. and he found some people in the said place of occurrence along with Shawon and Manik and the police held the inquest in between 2:45 to 3:15 p.m. and thereafter the seizure list was

prepared. He could not say who were present in the house of the accused Md. Belal along with him and also could not say the name of the owner of the said house and when he went there none of them were present in the house and which was locked. He further deposed that immediately after disappearance of the deceased Shahidul he was informed about the matter by Rezaul one of the brother of deceased Shahidul

He denied the defence suggestion that the recovery of the dead body and alams from the place of occurrence is not true and since the accused-persons were his rival group and in the last U.P. election they worked against him and worked in favour of Jahirul and for that reason he falsely implicated them in this case and deposed falsely.

P.W. 12 Mustafizur Rahman Mridha, the Joint Secretary, Ministry of Public Administration, deposed that on 01.08.2006 he was attached as 1st class magistrate at Bogura collectorate and accused Md. Rayhan was brought before him in connection with G.R. case No. 639 of 2006 and he gave him 3 hours time for refreshment and thereafter he recorded his

statement. He did not find any injury on the person of the accused Md. Rayhan and the statements was read over to him and found true he put in his signature. He proved the said confessional statement as Exhibit No. 5 and his signatures as Exhibit No. 5 series and also proved the signature of the accused Md. Rayhan as Exhibit No. 5 Kha. He deposed that the statement of accused was true.

In cross-examination of the defence this witness stated that he started to record the statements from 5:00 p.m. and he gave 3 hours time for refreshment and found no injury on the person of the accused and did not put off the wearing cloths of the accused and the accused was in his chamber under the supervisions of his peon namely Shamim. No police office present in his room at the time of recording the statement but police was sitting in his Bharandah.

This witness stated that the accused was arrested on 05.08.2006 and he was produced before him on 08.08.2006 and during that period the accused was in the police custody. He denied the suggestion that accused was seriously tortured by police and due to fear he made confession. He denied the

suggestion that he did not state the accused that he would not brought to police custody if he did not make confession and the confession of the accused was not true and voluntary.

In cross examination of accused Md. Rayhan this witness stated to the accused that he was a magistrate and there was a note that no injury was found on the person of accused. He denied that the accused did not make any statement and the thumb impression present in the statement was not the impression of the accused.

P.W.13 Md. Rezzaque Mollah, deposed that the occurrence took place before 4/5 years ago and at that time he was doing construction of the house in Pramanik Para at Fulbari nearby the rented house of accused Md. Belal then he came to know that a dead body was found and then went there and saw the dead body of deceased Shahidul and dead body was decomposed. The dead body was kept in a sack and came to know that wife of Md. Belal was trying to hide the dead body by water hyacinth and she fled away from the place of occurrence while a woman saw the same.

In cross-examination of the defence this witness stated that his house is about 200/250 yards from the place of occurrence and there were 35 houses in the place of occurrence but could not say the name of the owners of the said houses and many people gathered there when he came to the place of occurrence but could not say the name of them. He came to know from an unknown person that Md. Belal killed the deceased and he was not examined by the police. He denied the defence suggestion that he was not informed that the accused Md. Belal killed deceased Shahidul and his wife tried to hide the dead body in the pond by water hyacinth and deposited falsely. He denied the suggestion that he did not hear that Nasima was involved with the alleged offence.

P.W. 14 Doctor A.K.M. Saiful Islam deposed that he was attached as a lecturer of forensic medicine of Bogura Medical College Hospital and the dead body of Shahidul aged about 35 years was brought before him at about 5:00 p.m. on 01.06.2006 by constable No. 92203 Jahirul Islam and found the following injuries:

“(1) one stab injury anterior aspect of the abdomen (R+) side with exposed intestine.

(2) Throat and throat cut injury over the post aspect of neck and head as in attached with body by skin only.

(3) Stab injury in the (R+) lumber region

On dissection all injury mentioned above were ante mortem in nature.

And made the following opinion: “Death in my opinion was due to shock and hemorrhage resulting from above mentioned injuries which was ante- mortem in nature and homicidal in manner”

He deposed that in the post-mortem report the signature of Dr. Rezaul Karim was present and he knew his signature. He proved the post-mortem report and the signature of the said Dr. Rezaul Karim as Exhibit No. 6 and 6/1. He also proved his counter sign as Exhibit No. 6/2.

In cross-examination of the defence this witness stated that he did not write the post-mortem report and he had no positive answer. He stated that in the post-mortem report it was not mentioning the length, breadth and size of the injuries.

He admitted that the time of death was not mentioned in the post-mortem report. He denied the suggestion that the report was concocted and a false post-mortem report. He denied the suggestion that since he was head of the department put his signature in a false post-mortem report. He stated that since the dead body was decomposed, so the length, breath and size of the injuries could not be mentioned.

P.W.15 Abdul Wadud, Court-Sub-Inspector of Netrokona Sadar court, deposed that on 01.08.2006 he was attached as A.S.I. in Bogura Sadar police station and P.S.I. Ariful was entrusted to investigate the Bogura P.S. Case No. 122/3 dated 31.07.2006 under section 364 of the Penal Code, who visited the place of occurrence, prepared the sketch map along with separate index, held the inquest of the dead body and prepared the inquest report, sent the dead body to the morgue for post-mortem and also seized some alamats.

He deposed that subsequently on 01.08.2006 he was entrusted to investigate the case and again visited the place of occurrence, prepared two sketch map, such as the place of occurrence where the victim was killed and 2nd was the place

from where the dead body was recovered. During his investigation he arrested suspicious accused namely Md. Rayhan who voluntarily made confessional statement before the magistrate. He collected inquest report, post-mortem report and 161 statements of the witnesses. He deposed that in his investigation he found prima-facie case against accused Md. Belal alias Bilu, Md. Nadim, Md. Azim, Md. Rayhan and Nasima Begum and submitted charge sheet being No. 790 dated 15.12.2006 against those accused persons under sections 302/201/34 of the Penal Code. He proved the sketch map and the index prepared by P.S.I. Saiful Islam as Exhibit No. 7, 8, and his signatures as Exhibit No. 7/1 and 8/1 respectively. He knew the signature of said Saiful Islam since he was his colleague. He proved the inquest report and the signature as Exhibit No. 2 and 2/5. He proved the seizure list as Exhibit No. 8 the sketch map and index dated 02.08.2006 as Exhibit No. 9 and 10 and his signatures as Exhibit No. 9/1 and 10/1.

In cross-examination of the defence this witness stated that he was entrusted to investigate the case on 01.08.2006 and the seizure list was prepared on 01.08.2006 by his

previous investigating officer and there were three sketch maps and he prepared two and the previous investigating officer prepared one sketch map. He stated that he went to the place of occurrence i.e. B and K the alleged workshop of Mohammad Ali but none was examined nearby the said two place. He denied that he did not visit the alleged P.O. He was not present when the dead body was recovered. He could not say the name of the owner of houses from the 2nd place of occurrence the alleged pond and there was a Primary School beside the place of occurrence but could not say whether said school was opened at that time. He stated that he visited the place of occurrence 8/10 times. He recorded the statements of the witnesses in their houses and they have no previous enmity with the accused. He denied the suggestion that he did not visit the place of occurrence and his investigation was perfunctory and submitted a false charge sheet. He denied the suggestion that if he properly investigated the case the accused persons should not be implicated in the case.

In cross-examination of the state defence this witness stated that accused Md. Belal had more wives and at that time

accused Nasima was at his father's house. He denied that he collected the confessional statement of accused Md. Rayhan on putting threat him. He denied the suggestion that accused Md. Rayhan was not involved with the occurrence and his investigation was not true. He denied the suggestion that victim Shahidul may be killed by other terrorist and falsely implicated this accused persons in the instant case.

These are all about the evidence on record as adduced by the prosecution.

We have heard the learned Deputy Attorney General and the learned Advocate of the appellants, perused the Ejaher, the charge sheet, the inquest report, the seizure list, the post mortem report, the confessional statement, the impugned judgment and the papers and documents as available on the record.

The prosecution case is that the victim Shahidul Islam was a businessman and he had a shop at Kalitola Bazar and he along with his two brothers conducted the business conjointly in the same shop. On the date of occurrence i.e. on 27.06.2006 they were in the said shop and after closing the business at the

evening the deceased Shahidul Islam went away from the shop with Tk. 75,000/- and went to the Satmatha area of Bogura Town. When the deceased Shahidul went out from shop on enroute he told his younger brother namely Rafiquel Islam the P.W.2 that he will meet Md. Belal and will go somewhere. The further case of the prosecution was that the P.W.2 saw the deceased in the Satmatha area along with Md. Belal and at about 9:10 p.m. and also saw that they were wandering in the Dottobari area and accused Md. Nazim and Md. Nadim also were with them. Deceased Shahidul told him to inform the same to Shahinur Islam the another brother of him. But thereafter Shahidul did not return back and they searching for him in several places but could not trace out and thus on 29.07.2006 the informant filed G.D. entry being No. 1635. The informant thereafter lodge the ejaher with the Bogura Sadar police station on 31.07.2006 mentioning the name of accused Md. Belal Hossain, Md. Nadim and Md. Azim and suspecting that they may be abducted the deceased Shahidul and killed him for snatching away the amount of Tk. 75,000/-. Thereafter on 01.08.2006 the dead body was recovered from a pond

nearby the house of condemned prisoner Md. Belal and the local people informed them that the wife of Md. Belal namely Nasima Begum was trying to hide the dead body by water hyacinth and they made shouting then accused Nasima succeed to flee away from the spot and on getting the aforesaid information the police came there and brought the dead body at about 14:45 p.m. from the said pond. P.S.I. Saiful Islam (was not examined) held the inquest of the dead body, sent the corpse to the morgue for autopsy through a chalan by constable No. 722 (Jahirul Islam was not examined).

From the inquest report it is found that the said dead body was tied up by lylone rope and was packed in a yellow colour synthetic sack and which was brought from a pond nearby the house of accused Md. Belal and along with others the P.W.1, P.W.3, P.W.4, P.W.11 were present there and they put their signatures in the inquest report. Thereafter said P.S.I. Saiful Islam rushed to the house of accused Md. Belal and seized 12' dagger, a synthetic sack and blood found in the bottom of the said bag and prepared the seizure list and

P.W.3, P.W.5 and P.W.7 were the witnesses of the said seizure list.

On the next day the P.W.15 S.I. Md. Abdul Wadud was entrusted to investigate the case and could arrest the convict accused namely Md. Rayhan on 05.08.2006 and brought him before the magistrate for recording his confessional statement. On perusal of the confessional statement which seems to be purely an exculpatory confession and without implicating himself he narrated how the accused Md. Belal Hossian, Md. Nadim, Md. Azim and Nasima Begum the wife of Md. Belal killed the victim.

These are the main contention of the prosecution case.

To prove the case the prosecution examined as many as 15 witnesses among them the P.W.1 and P.W.2 are the full brothers of deceased Shahidul Islam. The P.W.3, P.W.4, P.W.5, P.W.7, P.W.11 are the witnesses of inquest report and seizure list. P.W.6 was tendered P.W.8 and P.W.9 were declared hostile. P.W.10 Jharna Begum one of the vital witness who saw that accused Nasima was trying to hide the dead body by water hyacinth and accordingly the presence of dead body was

come to light. P.W.13 a hearsay witness. P.W.12 was the magistrate who recorded the confession of accused Md. Rayhan, P.W.14 the doctor who held the autopsy of the dead body and P.W.15 was the investigation officer who submitted the charge sheet.

In the instant case admittedly no eye witness of the occurrence. The case of prosecution is that on 27.07.2006 at the evening the deceased Shahidul Islam after closing the shop went away with Tk. 75,000/- and the P.W.2 Rafiqul Islam claimed that he was present when the deceased Shahidul Islam left the shop.

The said P.W.2 also disclosed that deceased told him that he will go somewhere with accused Md. Belal. This witness disclosed that on the said day at about 9:00 p.m. he saw the deceased Shahidul Islam was wandering with condemned prisoner Md. Belal, Md. Nadim and Md. Azim at Satmatha and Dattobari area of Bogura town. But it appears that none of the witness of the aforesaid two area was examined by the prosecution to corroborate the prosecution case. It is also found that the police did not prepare sketch

map of Satmatha and Dattobari area where the P.W.2 lastly saw the deceased Shahidul along with the accused Md. Belal.

P.W.1 in his deposition stated that since the deceased Shahidul did not come back to the house then on the next day they searching for him in several places of their relatives and the P.W.2 also disclosed the informant about the said facts and thereafter, he filed G.D. entry No. 1635 on 29.07.2006. But subsequently on 31.07.2006 he again lodged Ejaher with the Bogura Sadar police station suspecting three accused-persons namely Md. Belal, Md. Nadim and Md. Azim that the deceased Shahidul may be kidnapped by those accused persons for snatching away Tk. 75,000/- and he may be killed by them.

Subsequently on 01.08.2006 at about 2:00 p.m. the dead body was recovered from a pond of Sarkarpara of Fulbari nearby the house of accused Md. Belal and the dead body was decomposed. The inquest was held by P.S.I. Saiful Islam who prepared the inquest report and the P.W.1, P.W.3, P.W.4, P.W.7 and P.W.11 were the witnesses of inquest report and they proved the same.

Immediately after the recovery of the dead body P.S.I. Saiful rushed to the house of accused Belal and found a 12' dagger and a bag contained with blood and prepared the seizure list in presence of the witnesses and which was proved by the P.W.3, P.W.5 and P.W.11.

The corpse was sent to the morgue and the doctor who held the autopsy found the following injuries: *“(1) stab injury anterior aspect of the abdomen (R+) side with exposed intestine. (2) Throat and throat cut injury over the post aspect of neck and head as in attached with body by skin only. (3) Stab injury in (R+) lumber region.*

On dissection all injury mentioned above were ante mortem in nature.

And made the following opinion: *“Death in any opinion was due to shock and hemorrhage resulting from above mentioned injuries which was ante- mortem in nature and homicidal in manner”*

The said doctor A.K.M. Saiful Islam the P.W. 14 proved the post-mortem report.

From the aforesaid facts it appears that the dead body was recovered from the pond nearby the house of condemned prisoner Md. Belal which was packed in a sack and was tied up by nylon rope and the dead body was decomposed and three sharp cutting injuries were found.

Though in the inquest report it has been mentioned that one injury in the left chest and another in the right abdominal part and intestine came out. But on perusal of the post-mortem report it is found that one injury was found in the right abdominal part. Three injuries mentioned in the inquest report as well as the post-mortem report and the vital injury was cut injury of the neck and the head just attached by skin only.

The defence though in their cross-examination tried to establish the case that the alleged dead body was not the dead body of victim Shahidul Islam but on perusal of the cross-examination as well as the other evidence it is our view that they could not succeed to find out any contrary view that the dead body of deceased Shahidul Islam was not recovered from

the aforesaid pond nearby the house of condemned prisoner Md. Belal Hossain @ Bilu.

It is found that the deceased Shahidul was missing on 27.07.2006 at about 9:00 p.m. and the dead body was found on 01.08.2006 at 2:00 p.m. so, it is clear that deceased Shahidul Islam was killed at any time in between 9:00 p.m. of 27.07.2006 to 2:00 p.m. of 01.08.2006.

Admittedly no eye witness of the occurrence. Though the informant side filed G.D. and subsequently lodged F.I.R. suspecting the convict Md. Belal, Md. Nadim and Md. Azim. But during the investigation the accused Md. Rayhan was arrested and who made an exculpatory confession implicating the name of those accused persons along with Nasima Begum wife of condemned prisoner Md. Belal Hossain.

The learned Deputy Attorney General frankly submits that the confessional statement of accused Md. Rayhan was purely an exculpatory confession but which may made assurance of the circumstantial evidence for involvement of the accused persons of the alleged offence.

The learned Advocate of the appellant submits that the trial court convicted the condemned prisoner and others not only relying upon the circumstantial evidence but also relying upon the confessional statement of convict-accused Md. Rayhan.

The learned Advocate submits that the convict Md. Rayhan was arrested on 05.08.2006 and he was produced before the magistrate on 08.08.2006 after 74 hours of his arrest and such type of confession should not be accepted as true and voluntary. Furthermore the said confession was exculpatory in nature and the same cannot be based on for conviction against its maker as well as against the other non-confessing accused. He cited the decision of the case of The State -versus- Md. Farid Karim, reported in 8 BLT(AD)-87, wherein their lordships held: *“The High Court Division from consideration of the confessional statement Exhibit-8 found that this accused was produced before the recording officer on 28.10.1986 and the accused reported that he was arrested at 11:00 a.m. on 26.10.986 and was produced before the recording officer from court Hazot on 28.10.1986 and from this*

the High Court Division came to the finding that this condemned prisoner was kept in police custody for two days without any explanation. It appears from the judgment of the High Court Division that they have considered the pros and cons of the case and on consideration of the evidence of the recording officer as well as the confessional statements and also considering several decisions of the superior courts of the sub-continent came to the finding that the confessional statement is not true and voluntary. Learned Deputy Attorney General though strenuously argued that this is a case of murder but the fact remains that he failed to point out any illegality in the judgment of the High Court Division which may call for our interference at this stage.”

He also cited the case of Abu Jamal and others -versus- The State, reported in 51 DLR (HCD) (1999)- 57, wherein the principle set up that: *“Exculpatory statement uncorroborated by any other evidence cannot be the basis of conviction.”*

The confessional statement of accused Md. Rayhan as under: *“ঘটনা ২৭/০৭/২০০৬ রাত ৭ টায় বেলাল হোসেন বিলুর বাড়িতে টিভি দেখতে যাই। বিলুর বাড়িতে দেখি মাটির চুলার পাশে কুয়ার মত গর্ত খুঁড়ছে আজিম বিলু*

মিলে। আজিম আমাকে বাড়ীতে চলে যেতে বললে আমি বলি এতদিন তো আমাকে চলে যেতে বলোনি। তখন আজিম আমাকে লাঠি দিয়ে মারতে আসে। এক গলা গর্ত কুয়ায় আজিম কোদাল দিয়া খুঁড়ছে আমি আজিমের ওখান থেকে দৌড়ে এসে নাসিরের দোকানে কলা খেয়ে বাড়ীতে চলে আসি। আজিমের বাড়ীতে টিভি তে জোরে গান চালু করায় বাড়ীতে শব্দে আমার ঘুম আর আসে না। আমি জেগে থাকা অবস্থায় রাত ১২.৩০ মিঃ সময় আজিমের বাড়ী থেকে জোরে ধপ করে একটি শব্দ পাই। আমি শব্দ পেয়ে আজিমের বাড়ীতে জানালার ফাক দিয়ে দেখি আজিমের বাপ বিলু বড় ছোরা দিয়ে একটি লোক পরে জানি তার নাম শহিদুলের হাত পা বেধে গলায় ছোড়া দিয়ে ঘাড়ে কাটছে। পেছন দিক দিয়ে জবাই করছে। তাকে রক্তাক্ত অবস্থা দেখতে পাই। আজিম বড় চাকু দিয়ে শহিদুলের বুকে ও পেটে আঘাত করে ভুড়ি বের করে ফেলে। আমি আজিমকে বলি কি করছো? তখন সে আমার গলায় চাকু ধরে বলে চিৎকার দিলে জানে মেরে ফেলবো। আমি ভয়ে থেমে যাই। তখন আজিম, নাদিম, বিলু তার স্ত্রী এই চারজন শহিদুলের লাশ বস্তার মধ্যে পুরে সেলাই করে রাখে সেই রাতে ঘরেই ছিল। ২৭/০৭/২০০৬ রাত ১১ টায় আজিমের বাবার বাড়ীর দক্ষিণ পার্শ্বে দশগজ দূরে হবে সেখানে বস্তাবন্দি লাশ নামায় পানির মধ্যে ডুবিয়ে রাখে। বিলু, আজিম শহিদুলের হত্যার বিষয় কেউকে না বলার জন্য আমাকে ৫০০০/- টাকা দিতে চেয়েছিল। আমি বিলুর কথা শুনেছি কেউকে বলিনি। এটাই আমার অপরাধ। বিলু, আজিম, নাদিম, বিলুর বইকে হত্যাকাণ্ড ঘটাইতে দেখেছি।”

On close reading of the aforesaid confessional statement it is found that which was purely an exculpatory confession and the accused was brought before the magistrate from police custody after 74 hours of his arrest without any

explanation. The recording magistrate the P.W.12 in his deposition also stated the same. So, it is our considered view that the confessional statement of accused Md. Rayhan should not be the basis for conviction of its maker as well as the other co-accused.

However, in such a case the prosecution could produce the convict Md. Rayhan as witness to prove the case.

This proposition supported by the case of Ibrahim Mollah and others –vs. The State, reported in 40 DLR (AD)-216, wherein their lordships held: *“That confession, in my opinion, was no confession in the eye of law because from the beginning to the end it was nothing but a testimony against the other accused without the maker having involved himself in any part of the commission of the alleged offence. Not to speak of other accused, the maker himself could not be convicted upon such a statement inasmuch as he did not implicate himself in the least in the alleged offence. In all fairness prosecution should have examined him as a witness instead of making him an accused so that the other accused could cross examine him. Be that as it may, if the principal evidence in the*

case, namely, direct oral evidence does not qualify to be trustworthy the alleged confession can be of no avail to the prosecution for the purpose of sustaining the order of conviction.”

From the above it is our considered view that the prosecution ought to have placed the maker convict Md. Rayhan as witness since he made purely an exculpatory confession and narrated what part the other convict had committed.

Considering the facts and circumstances of the case and the above cited decision it is our view that in deciding the case the learned trial court ought to have left the confessional statement of convict Md. Rayhan as evidence for conviction.

Now its to be considered whether the prosecution has been able to prove that the accused-persons all are liable to commit the offence of murder of deceased Shahidul only relying upon the circumstantial evidence.

The learned Deputy Attorney General argued that the circumstantial evidence in the instant case is so strong and complete that there is no any other hypothesis but to guilt of

accused and no scope to escape the convict persons from the charge of murder.

We have considered the documentary evidence specially the inquest report, from where it is found that the dead body was recovered from a pond of Sarkarpara of Fulbari area nearby the house of condemned prisoner Md. Belal Hossain and which was packed in a sack and was floating.

From the evidence and the cross-examination of the P.W.15 investigation officer it is also found that the house of one Abdul Mannan and M.R. brothers just adjacent to the pond from where the dead body was recovered but they were not examined and furthermore the name of owners of surrounding houses were also not mentioned in the charge sheet as witnesses.

It is found from the inquest report that the informant along with P.W.3, P.W.4, P.W.7 and P.W.11 were the witnesses of the inquest and they proved the same but in cross-examination by the defence they stated that they were not the residents of the aforesaid area and they came from some distance place of the occurrence and after hearing the incident

they rushed to the place of occurrence. Furthermore, the defence cross-examined them that they were the rival group of accused persons and they worked against the P.W.11 in the last U.P. Election.

The dead body was identified by the brother of deceased Shahidul, the P.W.1 and the defence though cross-examined him but could not find out anything that which was not the dead body of victim Shahidul.

Thereafter, the I.O. prepared the seizure list from the place of occurrence at about 15:20 p.m. and which was proved by the P.W.3, P.W.5 and P.W.11. Though I.O. Saiful Islam was not examined but the P.W.15 S.I. Md. Abdul Wadud the subsequent investigating officer proved the signature of A.S.I. Saiful Islam and stated that he knew the signature of said A.S.I. Saiful Islam since he was his colleague.

Further case is that thereafter the police rushed to the house of condemned prisoner Md. Belal and found white colour synthetic bag and blood found at the bottom of the said bag and about 20' length iron made dagger. The said seizure list was proved by the P.W.3, P.W.5 and P.W.11 and who in

their testimony stated that they found blood in the said iron dagger but on perusal of the seizure list we find no mentioning that which was bloodstained iron dagger. But blood found at the bottom of the seized bag. The defence though cross examined those witnesses but could not find out any contrary to their evidence that the said materials were not recovered from the house of condemned prisoner Md. Belal Hossain.

The police officer also did not mention that he found blood or anything in the house of Md. Belal. Though P.W.2 deposed that they found blood on the floor and Wall of accused Md. Belal but none corroborated the said facts.

The P.W.2 deposed that a hole was adjacent to the house of the accused and perhaps which was dig for disappearance of the dead body. But the I.O. did not specifically mentioned the same in the sketch map even other witnesses also did not disclose the said facts but it is the facts that the accused was killed at any place nearby the pond from where the dead body was recovered.

It appears that only the P.W.2 disclosed that he saw his brother deceased Shahidul Islam was wandering in Satmatha

as well as Dottobari area of Bogura Town along with Md. Belal till 9:30 of 27.07.2006 and accused Md. Nadim and Md. Azim were also present with them. But none of the witness deposed that they saw that the accused Md. Nadim and Md. Azim accompanied with deceased in the aforesaid two places.

The P.W.2 also deposed that the deceased Shahidul Islam had Tk. 75,000/- in his hand when he left out from the shop and he told him that he will meet with Md. Belal and will go somewhere. The P.W.1 the informant deposed that Rafiquul Islam the P.W.2 disclosed him to the said facts. But no other witness corroborated the said facts.

The further case of the prosecution is that initially on 29.07.2006 the informant filed a G.D. about the missing of the victim Shahidul without suspecting anyone though the said G.D. is not in the record but in his deposition the P.W.1 admitted that he did not mention the name of any accused or suspected anyone. But subsequently on 31.08.2006 he lodged the Ejaher suspecting the three convict persons namely Md. Belal, Md. Nadim and Md. Azim.

The learned Advocate of the appellants submits that admittedly the said G.D. entry has not been produced for evidence and the said G.D. entry should be treated as First Information Report but the prosecution purposely did not exhibit the said G.D. entry.

The first information report regarding any cognizable offence should be filed provided under section 154 of the Code of Criminal Procedure. Regarding the first information report our Apex Court took some view that if the same has been filed by anyone putting his signature and on the basis of which the investigation has been started then the same should be considered as first information report.

We have considered several decisions of our Apex Court. In some cases our Apex court specifically stated that the G.D. by which the investigation has been started should be treated as First Information Report and subsequent all other should be treated as 161 statements.

In the case of Muslem Uddin and others -versus- The State, reported in 7 BLD(AD)-1, wherein their lordships held: "Meaning of Information about the occurrence, which is

carried to the police at the earliest opportunity after the occurrence is the first information report and all subsequent information fall within the purview of section 161 of the code of criminal procedure.

In the case of Badal and others –versus- The state, reported in 10 BLC(HCD)-565, wherein their lordships after consideration of entire material facts settled that: *“Any information reaching the police station cannot be regarded as first information report. In order to qualify an information to be a first information report, certain requirements must of necessity be fulfilled. Firstly, the information must be an information relating to a cognizable offence. Secondly, such information must be reduced in written. In reducing the information to writing it needs be as nearly as possible in the language of the man who gives the information without any dictation from outside, it must be signed by the informant. Such information is required to be entered in the first information report register at police station diary under the police rules. The information is reduced to writing under the direction of the informant, it shall be read over and be*

explained to the informant and upon his satisfaction that the contents are correct he shall put his signature or thumb impression, as the case may be, on the report. In the instant case although there is a mention of a GD entry the entry is not forth coming to the court, yet a GD entry without fulfilling the aforesaid requirements cannot be said to be first information report.”

In the cited case the G.D. was filed by the police not by the informant. But in the instant case the brother of the informant filed a G.D. entry putting his signature following the procedure of section 154. So, as per decision of our Apex court in the case of Muslim Uddin and others -versus- The State, reported in 7 BLD (AD)-1 that the aforesaid G.D. entry may be treated as first information report and the first information report lodged subsequently may be treated as 161 statements.

The informant the P.W. 1 disclosed that they did not suspect anyone in the said G.D. but subsequently he lodged the F.I.R. suspecting three accused persons namely Md. Belal alias Bilu, Md. Nadim and Md. Azim that the victim Shahidul

Islam may be abducted and killed by those three accused persons for snatching Tk. 75,000/-.

Though the G.D. No. 1635 dated 29.07.2006 be treated as first information report but the defence should not be prejudiced for non-exhibiting the said G.D. entry since P.W.1 in his testimony specifically stated that said G.D. was lost regarding the missing of Shahidul Islam and in the subsequent first information report he only suspected those three accused-persons. Though it is our view that the F.I.R. may be treated as 161 statements but in his deposition the P.W.1 since categorically stated the aforesaid facts of missing so for non-production of the said G.D. the trial has not been vitiated and the defence has not been prejudiced.

It is found that the prosecution did not adduce any witnesses from the area of Dottobari or Satmatha of Bogura Town to see that the convict-persons were wandering with the deceased Shahidul on the aforesaid night at 9:00 p.m. in the said two area but the P.W.3, P.W.4, P.W.5 and P.W.11 in their deposition stated that they came to know from the informant as well as from P.W.2 that the deceased was lastly seen in

Dottobari area along with condemned prisoner Md. Belal Hossain alias Bilu. Admittedly they are the hearsay witnesses but the defence though cross-examined them but did not put any question about the said material facts that the condemned prisoner Md. Belal was not seen along with the deceased on 27.07.2006 in Dottobari area. From the above facts it is our view that the prosecution at least able to prove that deceased Shahidul was lastly accompanied with condemned prisoner Md. Belal on 27.07.2006 at about 9 p.m. in the Dottobari and Satmatha area of Bogura Town.

The P.W.2 disclosed that the convict Md. Nadim and Md. Azim were also wandering in the said area along with the deceased Md. Shahidul and condemned prisoner Md. Belal but the P.W.3, P.W.4, P.W.11 and P.W.13 did not mention that P.W.2 told them that the convict Md. Nadim and Md. Azim also were wandering along with deceased Shahidul at the Dottobari area.

From the aforesaid facts we are of the view that though in the instant case no eye-witness of the occurrence but it is the case of the prosecution that the victim Shahidul was lastly

accompanied with condemned prisoner Md. Belal Hossain alias Bilu at 9:00 p.m. on 27.07.2006 at Dottobari and Shatmatha area of Bogura Town.

In such a case it was the duty of the condemned-prisoner Md. Belal Hossain to explain that he was not wandering at the alleged time and place along with the victim Shahidul. But no such case could be established by the condemned prisoner Md. Belal Hossain.

Furthermore it is found that the seized materials (Exhibit-4) were recovered from the house of condemned prisoner Md. Belal Hossain but the defence did not cross examine the witnesses that the same were not seized from the house of him.

Considering the aforesaid facts, it is our considered view that the prosecution has been able to prove the case that the deceased Md. Shahidul Islam was lastly accompanied with condemned prisoner Md. Belal Hossain before the murder and some incriminating materials were also recovered from the house of condemned prisoner Md. Belal Hossain.

In the case of The State –vs. Arman Ali and others, reported in 42 DLR(AD)-50 our Apex court settled the ingredients of circumstantial evidence which are under:

- (i) *The rule of circumstantial evidence is that each chain of circumstances must be knitted together closely so as to lead to an irresistible conclusion that the accused alone had committed the offence.*
- (ii) *The chain of events must be such that the possibility of innocence to the accused alone had committed the offence by excluding the possibility that any other person might have committed the offence.*
- (iii) *Chain of events must be such that the possibility of innocence of the accused is wholly excluded and such facts are incapable of explanation on any reasonable hypothesis other than the guilt of the accused.*

If the circumstances do not provide any conclusive proof of the guilt of the accused, he cannot be

convicted merely on the ground that such circumstances provide a strong ground for suspicion against the accused. If the theory of guilt and theory of innocence are equally probable, then also the theory that favours the accused must be accepted.

The above contention also supported by the decision of the case of Sk. Baharul Islam –versus- The State, reported in 11 BLD(HCD)-158.

Having considered the aforesaid facts and circumstances of the case it is our considered view that the prosecution has been able to prove the charge leveled against the condemned-prisoner Md. Belal Hossain alias Bilu beyond all reasonable doubt. And it is our considered view that the trial court rightly convicted him.

Now the question is that whether the prosecution has been able to prove the charge leveled against other convict persons under section 302/34 of the Penal Code. It is our considered view that the prosecution measurably failed to prove the charge of section 302/34 against the convict Md.

Nadim and Md. Azim since the circumstantial evidence does not support the case of involvement of those two accused of the alleged murder.

The case of the prosecution is that in furtherance of common intention all the accused persons killed the victim Shahidul but no such evidence could be gathered by the prosecution against those two co-accused that in furtherance of common intention they killed the victim. Even no evidence against them that they were involved with the alleged murder. In the case of The State –vs. Khasru @ Syed Mostafa Hossain and another, reported 43 DLR(AD)-183, wherein our Apex court settled the principle of implicating the accused-persons in the offence under section 34 of the Penal Code. The common intention also discussed in the case of The State –vs. Arman Ali and others, reported in 42 DLR (AD)- 50. Wherein their lordships held:

“(i) For application of section 34 it must be established first that a criminal act has been done by several persons and secondly that all the participants intended that the criminal act should be done and lastly that the criminal

act has been done in furtherance of common intention shared by all the offenders. There must be evidence to show that the accused were present at the scene of occurrence and have actually participated and there must be a preconcert or prearranged plan. Before finding guilty under section 34 of the Penal Code, it must be borne in mind that this section is not intended to punish the conspirator for the act jointly intended or common intention formed by them but it punishes for the act actually committed. This section has provided punishment for the conspirators where the act shared by several offenders cannot be ascertained though the moral culpability is clear and identical. This section may be applied also where it is difficult to distinguish between the act of individual members of a party who acted in furtherance of their common intention but it is difficult to prove exactly what part each of the offenders has played. Once participation with common intention is established section 34 at once is attracted.

(ii) Mere proving that criminal act is done will not be sufficient for finding the accused guilty under section 34 of the Penal Code, but it must be proved or at least such common intention could be gathered from the facts and circumstances and evidence on record that the accused appellants have committed the offence in furtherance of common intention, otherwise charge under section 34 shall fail.

(iii) Inference of common intention within the meaning of section 34 should not be readily drawn or pushed too far unless the same is deducible from the evidence and circumstances of the case.”

On close reading of the evidence on record and the cited decisions it is our view that the prosecution could not able to prove the involvement of the appellant Md. Nadim and Md. Azim that in furtherance of common intention they killed the victim.

Having considered the facts and circumstances of the case it is our view that the prosecution measurably failed to

prove the charge leveled against the appellant Md. Nadim and Md. Azim under section 302/34 of the Penal Code.

It has already been discussed that the learned Deputy Attorney General did not submit anything about the confessional statement made by accused Md. Rayhan which is purely exculpatory in nature. We have already considered that in such a case the prosecution ought to have made him witness. This proposition supported by the decision of the case of Ibrahim Mollah and others –vs. The State, reported in 40 DLR (AD)-216.

Having considered the facts and circumstance of the case we find that the prosecution could able to prove the charge leveled against the condemned prisoner Md. Belal Hossian alias Bilu under section 302 as well as section 201 of the Penal Code, since admittedly the dead body was found in the pond nearby the house of condemned prisoner Md. Belal covered with synthetic bag which presumed to be disappearance of the dead body.

The learned Advocate cited several decisions and submits that in the instant case the prosecution failed to prove

the motive of the case and also the condemned prisoner in the death cell for more than 6 years. The learned Advocate referred the decision of the case of Nazrul Islam (Md) –vs. The State, reported in 66 DLR (AD)-199, 17 BLC (AD)-204 and 66 DLR (HCD)-500.

Considering the decisions settled in the above cited cases and the facts and circumstances of the case we are inclined to commute the sentence of the condemned prisoner Md. Belal Hossain alias Bilu since he is in death cell for more than 6 years.

Having considered the facts and circumstances of the case it is our considered view that the death sentence of the condemned prisoner Md. Belal Hossain alias Bilu may be commuted to imprisonment for life under section 302 of the Penal Code.

In the result, the death reference is rejected. The conviction and sentenced passed by the learned Additional District Sessions Judge, 1st Court, Bogura under sections 302/201/34 of the Penal Code is hereby upheld so far as relates to the condemned-prisoner-appellant Md. Belal

Hossain alias Bilu with the modification of the sentence of death to sentence of imprisonment for life with fine of Tk. 5,000/- in default to suffer imprisonment for 2 years more. Though we have taken view that condemned prisoner also should be convicted under section 201 of the Penal Code but since the condemned prisoner has already is in death cell for 6 years as well as in jail custody before trial as such no further order is required.

The criminal Appeal No. 8201 of 2015 is dismissed with the above modification of sentence. Consequently the Jail Appeal No. 178 of 2015 is hereby disposed of.

The Criminal Appeal No. 10701 of 2015 is hereby allowed. The conviction and sentence of convict-appellants Md. Nadim Miah and Md. Azim Miah under section 302/34 are hereby set-aside. The appellant Md. Azim be set at liberty forthwith if not wanted in connection with any other cases.

The appellant Md. Nadim be discharged from his bail bond.

The Jail Appeal No. 259 of 2016 is hereby allowed. The conviction and sentence against accused Md. Rayhan is hereby

set-aside and he be set at liberty forthwith if not wanted in connection with any other cases.

Communicate the judgment and transmit the lower Court records at once.

Bhishmadev Chakraborty, J:

I agree.

M.R.